

IAS PRELIMS/MAINS

Ecology & Environment

A stylized illustration of a green city skyline with various skyscrapers, wind turbines, and a sun, set against a light green background with a globe-like shape.

A COMPREHENSIVE COVERAGE

MODULE - 55

INDIA's LAWS AND POLICIES - 3

- It was passed on August 21, 1972 but was later implemented on September 9, 1972.
- This act prohibits the capturing, killing, poisoning or trapping of wild animals.

OBJECTIVES OF THE ACT ARE

- Prohibition of hunting
- Protection and management of wildlife habitats
- Establishment of protected areas
- Regulation and control of trade in parts and products derived from wildlife
- Management of zoos.



WILD LIFE
PROTECTION ACT,
1972



- Wildlife Protection Act 1972 (WLPA) prohibits the injuring, destroying and removing any part of a wild animals body.
- In the case of wild birds and reptiles, the act also forbids disturbing or damaging their eggs.
- WLPA is also against taxidermy, which is the preservation of a dead wild animal as a trophy, or in the form of rugs, preserved skins, antlers, horns, eggs, teeth, and nails.



WHAT DOES THIS ACT INCLUDE?

Under the Act, there are **six schedules** which give varying degrees of protection

- Schedule I and part II of Schedule II provide absolute protection and offences under these are prescribed the highest penalties.
- The penalties for Schedule III and Schedule IV are less and these animals are also protected.
- Schedule V includes the animals which may be hunted. These are Common crow , Fruit bats, Mice & Rats only.

- Schedule VI contains the plants, which are prohibited from cultivation and planting. These plants are as follows
 - ✓ Beddome's cycad (*Cycas beddomei*)
 - ✓ Blue Vanda (*Vanda soerulec*)
 - ✓ Kuth (*Saussurea lappa*)
 - ✓ Ladies slipper orchids (*Paphiopedilum spp.*)
 - ✓ Pitcher plant (*Nepenthes khasiana*)
 - ✓ Red Vanda (*Ranantthera inschootiana*)



DESIGNATION OF VERMIN SPECIES UNDER THE ACT

- Vermin refers to pests or nuisance animals which spread diseases or destroy crops or livestock.
 - In India Section 62 of the Wildlife Protection Act, 1972 empowers the states to send a list of wild animals to the Centre requesting it to declare them vermin for selective slaughter.
 - The Central Government through notification may declare any wild animal other than those specified in Schedule I and part 11 of Schedule H of the law to be vermin for any area for a given period of time.
- For the period the notification is in force such wild animal shall be included in Schedule V of the law, depriving them of any protection under that law.
 - Declaration of Vermin provides a reprieve for those who kill these animals in the specified areas for a year after these notifications, from the jail terms and fines that hunting these animals typically invite.
 - The hunted wildlife is declared as government property and it imposes restrictions on how these carcasses must be disposed of.

THE 1991 AMENDMENT

- 1991 Amendment Act recognized the importance of zoos in protection of wild animals in the country and hence it was determined that the management of zoos will be monitored by the Central Zoo Authority established under the Amendment Act.
- Further on the basis of Convention on International Trade in Endangered Species of Wild Fauna and Flora (CITES), collection of endangered species of animals and plants has been prohibited. But it will not affect the collection of traditionally used plants for bona fide personal use of tribals.



THE 2002 AMENDMENT

- The 2002 Amendment Act which came into force in 2003, has made punishment and penalty for offences under the Act more stringent.
- Stringent measures have also been added to forfeit the properties of hardcore criminals who have already been convicted in the past for heinous wildlife crimes.
- Provisions have also been made empowering officials to evict encroachments from Protected Areas.



As per the amendment of the Act in 2002, a provision was incorporated for the constitution of the National Board for Wildlife, replacing the Indian Board for Wildlife.

1. It is a *“Statutory Organization” constituted under the Wildlife Protection Act, 1972.*
2. Its roles is *“advisory” in nature* and advises the Central Government on framing policies and measures for conservation of wildlife in the country.
3. *Primary function of the Board is to promote the conservation and development of wildlife and forests.*
4. It has *power to review all wildlife-related matters and approve projects in and around national parks and sanctuaries.*
5. *No alternation of boundaries in national parks and wildlife sanctuaries can be done without approval of the NBWL.*
6. **Composition:** The NBWL is chaired by the Prime Minister. It has 47 members including the Prime Minister.

- The Minister of Environment and Forests acts as the vice-chair. Also, a number of government functionaries drawn from both the Central and State governments, five non-governmental organizations and ten conservationists/ecologists are nominated to the NBWL.
 - The board advises the central and state governments in matters concerning wildlife conservation policy, illegal trade and poaching, management of national parks and sanctuaries, impact assessments of projects on wildlife, and other related issues.
- The NBWL is ordinarily expected to meet at least once a year, but this does not always happen. However, a Standing Committee of the NBWL, comprising of a few government and non-government members of the NBWL, meets every three months under the chairmanship of the Union Minister of Environment and Forests, primarily to examine proposals for non-forestry use of forestland within National Parks and Wildlife Sanctuaries, and issue or deny permissions. These include proposals for highways, dams, industries and mining etc.

- Similarly State Boards for Wildlife have also been constituted with Chief Minister as the Chairperson.
- Duties of the State Board for Wildlife — Its duty is to advise the State Government -
 - ✓ in the selection and management of areas to be declared as protected areas.
 - ✓ in formulation of the policy for protection and conservation of the wildlife and specified plants.
 - ✓ in relation to the measures to be taken for harmonizing the needs of the tribals and other dwellers of the forest with the protection and conservation of wildlife.
 - ✓ in any other matter connected with the protection of wildlife, which may be referred to it by the State Government.
- In many states, the SBWL is either totally defunct or simply a rubber stamp. Very often, retired government officials and 'nature enthusiasts' with questionable knowledge and credentials make up the board, thus making it fairly ineffective.



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Learning Space

For Suggestions:

suggestions@learningspace.in

To Contact us:

info@learningspace.in

For Information:

info.learningspacedigital@gmail.com

Visit us at:

www.learningspacedigital.com

98499 42299